

Last updated: **May 28th, 2025**

3D TEXTURES

Lightbeans Technology Inc. ("**Lightbeans**" or "**we**" or "**us**") is reinventing the digital presentation of surface materials with its 3D visualization technologies.

Our catalog of intelligent textures (the "**Catalog**") offers a variety of digital surface material models (the "**Textures**") enabling users to incorporate real supplier products into their 3D renderings. Our Textures are also available via access windows on our business partners' websites (the "**Texture Access Windows**" and collectively with the Catalog, (the "**Platform**")).

TERMS AND CONDITIONS

1. INTRODUCTION AND SCOPE

These terms and conditions (the "**Terms**") govern your use of the Platform. The Terms and our [Privacy Policy](#) are a legal agreement between you ("**you**" or the "**User**") and Lightbeans.

PLEASE CAREFULLY READ ALL OF THE TERMS BEFORE BROWSING THE PLATFORM OR DOWNLOADING TEXTURES.

2. ACCEPTANCE OF TERMS

By accessing and browsing the Platform, you accept and agree to be bound by and comply with these Terms and our [Privacy Policy](#), which is integrated hereto by reference. You must not access or use the Platform if you do not want to be bound by these Terms.

If you accept these Terms on behalf of a legal entity, such as a corporation, a partnership, etc. (hereinafter the "**Business**") you represent and warrant that you have the power and authority to bind this Business so it will comply with these Terms and the [Privacy Policy](#). If you do not have the power and authority to act on behalf of the Business and to bind it, you must not access or use the Platform.

3. USERS AND THEIR RIGHTS AND LICENSES

A "**User**" is any person browsing the Platform.

Subject to these Terms, Lightbeans hereby grants to the Users for the duration of these Terms, the rights, access and browsing license to and on the Platform and the use of its functionalities based on the content which they may access in accordance with the restrictions set forth in these Terms.

4. DOWNLOADING TEXTURES

Textures can be downloaded free of charge from our Platform. The use of the Textures is restricted by the license granted in Article 6. Please read the applicable license rights and restrictions carefully.

A professional e-mail address is required to download Textures. A code will be sent to this address to activate Texture download. The address selected must be professional, complete, accurate and up to date.

We are authorized to share your business e-mail address with our partners, affiliates and third parties to manage and provide certain online activities necessary for the operation of our business. We may also share your business e-mail address with our partners in the surface materials industry for promotional purposes. For more details, please consult our [Privacy Policy](#).

5. INTELLECTUAL PROPERTY AND OWNERSHIP

You understand and agree that the Platform and all of its content, its features and functionalities, namely but not restrictively, all information, software, codes, texts, displays, graphic representations, photographs, video, audio, design, presentation, selection and arrangement are the property of Lightbeans, its licensors, or other suppliers of this material and all of the preceding is protected in all ways possible by intellectual property legislation, including, without restriction, copyright, trade-marks, patents, trade secrets and other property rights. You may download and use the Textures only in accordance with the license set forth in Article 6.

The name of Lightbeans, its logo and all names, logos, names of products and services, sketches, images and slogans related thereto are trademarks of Lightbeans or its licensors. You are prohibited from using these trademarks without the prior written permission from Lightbeans. The other names, logos, names of products and services, sketches, images and slogans mentioned, or which are used on the Platform are trademarks belonging to their respective owners. Absent specific authorization, the use of this property is an offence or an infringement of the right of ownership and may constitute a violation of law or otherwise and could expose the offender to judicial prosecution.

You may only use the Platform for your own use and in accordance with the rights and license granted in Article 6. With the exception of downloading Textures and using them in accordance with Article 6, you shall not, directly or indirectly, reproduce, republish, or transmit any material on our Platform in any shape, form and on any media whatsoever.

If you print, copy or download part of our Platform by infringing these Terms, your right to use the Platform shall immediately cease and you shall, at our option, return to us or destroy any copy of the documents you made. You have no right, title to or interest in the Platform or on any of its content and all rights not specifically granted are reserved by Lightbeans. Any use of the Platform that is not specifically authorized hereunder is a breach of these Terms and can infringe copyright, trademarks and other intellectual property legislation.

6. PERMITTED USE OF TEXTURES

Subject to these Terms, Lightbeans hereby grants to Users, for the duration of these Terms, a limited, worldwide, non-exclusive, revocable, non-transferable, and non-sublicensable license to use, modify and integrate the Textures into image productions, such as 3D scenes.

It is strictly forbidden to:

- a) sell, give away, transmit, distribute directly or indirectly any Texture or any modified version thereof without the written consent of Lightbeans;
- b) reverse engineer or recreate or attempt to recreate any physical material or surface from a Texture;
- c) integrate a Texture in order to produce images for promotional purposes of a product of a company competing with the partner commercializing the product corresponding to the Texture;
- d) use a Texture as a service mark, trademark, logo or any form of intellectual property or which could give rise to a claim for misleading advertising or unfair competition;
- e) use a Texture to create, develop or sell products or services comparable to those of Lightbeans or its catalog of Textures or copy any idea, feature, function, graphic, interface related to the Textures or the Platform;
- f) use a Texture for illegal purposes;
- g) use a Texture in a way that violates the rights of any third party, including but not limited to intellectual property rights; and
- h) make any other use of a Texture in violation of these Terms.

Any violation or attempted circumvention of this clause or any misuse of the license entitles us (at our sole discretion) to refuse further provision of the services, to remove or edit the content, to terminate this agreement with immediate effect and/or to suspend your right to download the Textures. We shall not be liable for any damages you may suffer because of such actions. You are further required to indemnify us for all losses and damages arising therefrom.

7. YOUR OBLIGATIONS

By using this Platform, and without restricting the general nature of what is otherwise stipulated in the Terms, you agree: (i) to comply with all applicable laws, including without restrictions, protection of privacy legislation and legislation protecting intellectual property; (ii) to provide us with accurate information that we can share in accordance with the [Privacy Policy](#) and to keep it up to date; and (iii) to use the Platform responsibly and reasonably. In addition, you agree not to:

- a) use the Platform in any way to harass, abuse, stalk, threaten, defame or otherwise infringe the rights of any other party;
- b) knowingly introduce into the Platform any virus, Trojan horse, worm, logical bomb or other malicious or technologically harmful material or any other prejudicial content;
- c) usurp or attempt to usurp Lightbeans or any Lightbeans employee, any other User or any other entity (including, without limitation, the use of e-mail addresses or screen names that are associated with or deceptively similar to any of the foregoing);
- d) use tools or other methods to extract, exploit or assemble Platform data;
- e) do anything that restricts or prevents the use or enjoyment of the Platform by anyone, or which, as we determine, may prejudice Lightbeans or Users to our Platform or subject ourselves or these other Users to any liability;
- f) use the Platform in any way that may deactivate, overload, damage or deteriorate it or interfere with the use of the Platform by any other party;
- g) use the Platform to send harassing or threatening messages to anyone;
- h) use any robot, search engine or any other device, process or automatic means to access the Platform for any purpose whatsoever, including the surveillance or copying of any Platform content or other material on the Platform;
- i) attempt to attack the Platform's security measures;
- j) attempt to obtain unauthorized access, to interfere with, damage or upset any part of the Platform, the server which hosts the Platform, or any server, computer or database connected to the Platform; and
- k) attack the Platform by denial of service or by distributed denial of service attacks.

8. CONFIDENTIALITY

By submitting your personal information and by using our Platform, you agree to the collection, use, reproduction, hosting, transmission and disclosure of the submitted personal information in compliance with our [Privacy Policy](#).

9. THIRD PARTY WEBSITES

For your convenience, the Platform may post links to third party websites. We make no representations and give no warranties regarding other websites which may be accessed from our Platform. If you choose to access these websites, you do so at your own risk. We have no control over the content of these third party websites or for any loss or damage which may result from your use of these sites. You are subject to all of the general conditions of these third party websites.

These links to third party websites from our Platform may include links to certain functions of social media that allow you to personally connect, publish or transmit, or by using certain third party websites, some Platform content. You may use these functions only when we provide them and only regarding the identified content.

You may post a link to our homepage, provided you do so fairly and legally, not prejudice our reputation or make a profit from it. You must not post a link to suggest a type of association, approval or support with or by us when none exists. We reserve the right without giving prior notice, to withdraw the authorization to create a link. The website in which you create or post a link must comply with the Terms in all respects. You agree to cooperate with us to obtain the immediate cessation of any unauthorized justification or link.

10. RELIABILITY

Although we make reasonable efforts to update the information on our Platform, we make no representations, give no warranty or assurance, whether express or implied, that the content of our Platform is accurate, complete or up to date. You use our Platform at your own risk and neither Lightbeans, its parent corporation, its respective affiliates, their directors, officers, employees, agents, service suppliers, contractors, licensors, licensees, suppliers nor successors shall entail any liability or obligation resulting from your use of this Platform.

The Platform may include content provided by third parties, including other Users and third party licensors. All statements made and/or opinions given within such third party content, other than the content provided by Lightbeans, are strictly the opinions and the responsibility of the person or the entity providing said content. This content is not necessarily Lightbeans' opinion. Neither Lightbeans, its parent corporation, its respective affiliates, their directors, officers, employees, agents, service suppliers, contractors, licensors, licensees, suppliers nor successors shall entail any liability or obligation to you or to a third party, for the content or accuracy of any third party content.

11. EXCLUSION OF WARRANTIES

YOU UNDERSTAND AND AGREE THAT YOUR USE OF THE PLATFORM AND ITS CONTENT AND OF ANY SERVICE OR CONTENT FOUND OR OBTAINED THROUGH THE PLATFORM IS AT YOUR OWN RISK. THE PLATFORM, ITS CONTENT AND ALL SERVICES OR ELEMENTS FOUND OR OBTAINED THROUGH THE PLATFORM ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT ANY EXPRESS OR IMPLIED WARRANTY OR CONDITION, INCLUDING WITHOUT ANY RESTRICTIONS, IMPLICIT WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. WHAT PRECEDES SHALL NOT AFFECT THE WARRANTIES THAT CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

NEITHER LIGHTBEANS, NOR ITS PARENT CORPORATION, THEIR RESPECTIVE SUBSIDIARIES, AFFILIATES, THEIR DIRECTORS, OFFICERS, EMPLOYEES, AGENTS, SERVICE SUPPLIERS, CONTRACTORS, LICENSORS, LICENSEES, SUPPLIERS NOR RESPECTIVE SUCCESSORS (AN "**EXONERATED PARTY**") GIVE(S) ANY WARRANTY, MAKE(S) ANY REPRESENTATION OR GIVE(S) ANY

APPROVAL ABOUT THE COMPREHENSIVENESS, QUALITY, SECURITY, RELIABILITY, RELEVANCY, ACCURACY, CURRENCY OR AVAILABILITY OF THE PLATFORM OR OF ITS CONTENT, AND AS TO THE CONFORMITY OF THE TEXTURES TO THE MATERIALS REPRESENTED, NOR REGARDING THE RESULTS WHICH MAY BE OBTAINED BY THE PLATFORM. WITHOUT RESTRICTING WHAT PRECEDES, NO EXONERATED PARTY REPRESENTS OR WARRANTS THAT THE PLATFORM, ITS CONTENT OR ANY SERVICE OR ELEMENT FOUND OR OBTAINED THROUGH THE PLATFORM IS ACCURATE, RELIABLE, FREE OF ERRORS OR UNINTERRUPTED, THAT DEFECTS WILL BE CORRECTED, THAT OUR PLATFORM OR THE SERVER WHICH HOSTS IT ARE FREE OF VIRUSES OR OTHER HARMFUL CONTENT.

WE CANNOT AND WE DO NOT WARRANT THAT THE FILES OR DATA AVAILABLE FOR DOWNLOADING ON INTERNET OR ON THE PLATFORM ARE FREE OF VIRUSES OR OTHER MALICIOUS CODES. YOU ALONE ARE ENTIRELY RESPONSIBLE FOR YOUR USE OF THE PLATFORM AND FOR THE SECURITY OF YOUR COMPUTER, OF INTERNET AND OF YOUR DATA. TO THE EXTENT PROVIDED BY LAW, WE ARE NOT LIABLE FOR ANY LOSS OR DAMAGE CAUSED BY A DENIAL OF SERVICE ATTACK, A DISTRIBUTED DENIAL OF SERVICE ATTACK, OVERLOAD, FLOODING, BOMBING OR ANY ELECTRONIC COMMUNICATION OR A CRASH, VIRUSES, TROJAN HORSES, WORMS, LOGICAL BOMBS OR ANY OTHER TECHNOLOGICALLY HARMFUL MATERIAL OR WHICH COULD INFECT YOUR COMPUTER EQUIPMENT, COMPUTER PROGRAMS, DATA, OR ANY OTHER PROPRIETARY MATERIAL DUE TO YOUR USE OF THE PLATFORM OR BECAUSE OF ANY SERVICE OR ELEMENT FOUND OR OBTAINED THROUGH THE PLATFORM OR FROM THE DOWNLOADING OF ANYTHING POSTED ON IT OR FROM ANY SERVICE LINKED TO IT.

12. LIMITED LIABILITY

EXCEPT WHEN SUCH EXCLUSIONS ARE PROHIBITED BY LAW, NAMELY UNDER THE CONSUMER PROTECTION ACT, WHEN YOU ARE A QUEBEC CONSUMER, IN NO CASE WILL AN EXONERATED PARTY BE LIABLE FOR NEGLIGENCE, GROSS FAULT, FOR A NEGLIGENT FALSE STATEMENT, A FUNDAMENTAL BREACH, FOR ANY TYPE OF DAMAGES UNDER ANY LEGAL THEORY, INCLUDING ANY DIRECT, INDIRECT, SPECIAL, ACCESSORY, CONSECUTIVE OR PUNITIVE DAMAGES, INCLUDING WITHOUT RESTRICTION, BODILY INJURY, PAIN AND SUFFERING, EMOTIONAL DISTRESS, LOSS OF INCOME, LOSS OF PROFITS, ANTICIPATED LOSS OF ACTIVITIES OR SAVINGS, LOSS OF USE, LOSS OF CLIENTELE, LOSS OF DATA, WHETHER CAUSED BY CIVIL DELICTUAL LIABILITY (TORT), (INCLUDING NEGLIGENCE), BREACH OF CONTRACT, INFRINGEMENT OF PRIVACY OR OTHER, EVEN IF THE PARTY WAS ALLEGEDLY INFORMED OR HAD REASON TO KNOW, RESULTING FROM OR IN CONNECTION WITH YOUR USE OR THE INABILITY TO USE THE PLATFORM OR HAVING CONFIDENCE IN THE PLATFORM, OR IN ANY RELATED WEBSITE OR THIRD PARTY WEBSITE, AS WELL AS ANY CONTENT, MATERIAL, DISPLAY, OR INFORMATION ON THE PLATFORM, EVEN IF THE PARTY WAS ALLEGEDLY INFORMED OR HAD REASONS TO KNOW.

NOTWITHSTANDING THE PRECEDING PARAGRAPHS, IF LIGHTBEANS IS HELD TO BE LIABLE, OUR LIABILITY TO YOU OR TO A THIRD PARTY, IS LIMITED TO \$20,

EXCEPT IF SUCH A LIMIT IS PROHIBITED BY LAW, NAMELY UNDER THE CONSUMER PROTECTION ACT.

13. INDEMNITY

To the maximum extent permitted by applicable law, you agree to defend, indemnify and hold harmless an Exonerated Party for any claim, liability, damages, interest, judgments, rulings, awards, losses, costs, expenses or fees (including reasonable attorney's fees) resulting from or caused by your infringement of these Terms or from your use of the Platform, namely but not restrictively, third party websites, any use of content, services and products of or from the Terms other than what is specifically authorized under the Terms.

14. DURATION AND TERMINATION

14.1 Duration

Your right to use the Platform begins on the date you accept these Terms and continues for an unlimited period of time (unless it is terminated pursuant to these Terms).

14.2 Termination for convenience

You may terminate these Terms at any time by contacting customer service at the email address specified below. Lightbeans may also terminate these Terms for convenience reasons by giving you a prior notice of five days.

14.3 Termination for cause

These Terms may be terminated by either of the parties for the following reasons: i) with a prior notice of three days if the other party infringes or breaches a material provision of these Terms and does not remedy said infringement or breach before the end of the three-day period, or ii) with an immediate effect and without a prior notice if the other party becomes insolvent or is voluntarily or involuntarily petitioned into bankruptcy, is subject to a business reorganization or any other similar measure, or of an assignment for the benefit of his (its) creditors, or if a receiver is appointed for any reason whatsoever, or if a party ceases doing business or otherwise terminates his (its) commercial activities, except in case of an assignment authorized hereunder. Lightbeans may temporarily cease the performance of its obligations during any remedial period.

In case of the termination of these Terms for any reason whatsoever, your right to access and use the Platform shall cease and you must delete from your systems and devices any material belonging to Lightbeans.

15. APPLICABLE LAWS AND JURISDICTION

The Platform and these Terms shall be governed under and interpreted in compliance with the applicable laws of the province of Quebec (Canada) and Canada, without taking into consideration the principles of conflict of laws and notwithstanding your domicile, your residence or your physical location.

Any legal proceedings or procedures resulting from this Platform or concerning it and/or these Terms shall be undertaken before the courts of the province of Quebec, in the judicial district of Quebec and/or in the Federal Court of Canada and each party irrevocably submits to the exclusive jurisdiction of these courts for any such type of proceedings or procedure. You waive any objection to the exercise of jurisdiction over you by these courts and to their jurisdiction.

16. SEVERABILITY

In the event that any provision of these Terms is found to be legally or regulatory invalid or unenforceable by a court of competent jurisdiction, such finding shall be limited solely to the invalid or unenforceable section, without affecting the remaining sections of such provision, or any other provision of these Terms, so that these Terms shall remain in full force and effect.

17. UPDATING AND AMENDMENT

17.1 Applicable version. The Terms are in force on the date mentioned in the beginning of said Terms and they replace any prior version. The version of these Terms is the one that was in force at the point in time in question.

17.2 Amendments to the Terms. Our Platform is in constant evolution and accordingly, these Terms may be amended by Lightbeans from time to time at its entire discretion. When we make any amendments, we shall publish them on this page for some time to draw your attention to them, as well as to the Platform homepage, to show that these Terms were amended. If these amendments are substantial or require your consent, we shall also inform you by email if we have your email address.

18. NOTICES, COMPLAINTS AND COMMUNICATIONS

Any notice which must or may be given under these Terms must be in writing and will be considered as having been validly given if it is sent by email or by registered mail to the following addresses:

Customer Service – 1-866-525-3071

125-2299, Versant-Nord boul.,
Québec (Québec) Canada, G1N 4G2

Electronic Address: compliance@lightbeans.com

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